

**24NNCV00427 24NNCV00427**

County: los-angeles  
Division: Civil Law and Motion  
Department: 3  
Hearing date: 2026-07-01  
Motion: PLAINTIFFS; MOTION FOR EVIDENTIARY SANCTIONS  
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Case Number: 24NNCV00427 Hearing Date: July 1, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA  
  
FOR THE COUNTY OF LOS ANGELES - NORTHEAST  
DISTRICT

JAMES  
MATYAS, et al.,

Plaintiff(s),

vs.

WEAVER  
& ASSOCIATES, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: PLAINTIFFS; MOTION FOR EVIDENTIARY SANCTIONS

Dept.

3

8:30

a.m.

July 1,

2026

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I.

INTRODUCTION

On June 9, 2026, plaintiff James Matyas ("Plaintiff") filed this motion for an order imposing evidentiary sanctions on defendants Weaver & Associates, Inc., Ralph Weaver, Matthew Weaver, Denise Weaver, and Dana Dattola (collectively, "Defendants") by striking their supplemental responses to Plaintiff's Special Interrogatories (Set One) and Requests for Admission (Set One), deeming Defendants' original discovery responses binding, precluding inconsistent trial testimony, and awarding Plaintiff attorney and filing fees for this motion.

Defendants filed an opposition brief on June 17, 2026.

Plaintiffs filed a reply brief on June 24, 2026.

II.

LEGAL

STANDARD

Typically, interrogatories are not preclusive in the way requests for admission are and a party, without leave of court, “may serve an amended interrogatory that contains information subsequently discovered, inadvertently omitted, or mistakenly stated in the initial interrogatory [response].” (Code Civ. Proc., § 2030.310, subd. (a).) The propounding party of an interrogatory to which an amended answer has been served may move for an order that the initial answer be deemed binding on the responding party for the purpose of the pending action. (Id., subd. (b).) The Court shall grant this motion if all of the following conditions are satisfied:

(1)

The initial failure of the responding party to answer the interrogatory correctly has substantially prejudiced the party who propounded the interrogatory.

(2)

The responding party has failed to show substantial justification for the initial answer to that interrogatory.

(3)

The prejudice to the propounding party cannot be cured either by a continuance to permit further discovery or by the use of the initial answer under Section 2030.410.

(Id., subd. (c).) The Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to deem binding an initial answer to an interrogatory, unless it finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id., subd. (d).)

III.

#### DISCUSSION

Plaintiff argues that Defendants should be bound to their initial responses to interrogatories because their amended responses (referred to in briefing as “supplemental” responses) contradicted their initial responses and deposition testimony. Plaintiff also argues that evidentiary sanctions should be imposed because Defendants’ initial responses are also evasive and contradictory, which have impaired Plaintiff’s ability to prepare for trial.

Plaintiff’s motion is DENIED and each individual request is addressed in further detail below. First, the Court notes that Plaintiff failed to meet and confer with Defendants before bringing this motion. This ground is sufficient to deny the motion based on Code of Civil Procedure section 2030.310(b). Second, many of Plaintiff’s complaints about Defendants’ supplemental responses to special interrogatories, upon investigation, do not reveal any purported contradiction in testimony or responses and even if there were, Plaintiff fails to demonstrate any substantial prejudice or an inability to cure any prejudice through further discovery.

The Court disagrees with Plaintiff’s characterization of Defendants’ actions as obfuscatory or evasive and does not find a “pattern of willful discovery abuse.” The only improper action taken by Defendants is their withdrawal/amendment of admissions without first seeking leave of court. This may warrant monetary sanctions, but not an extreme measure such as evidentiary sanctions.

A.

Dana

Dattola

Response to SROG No. 1 vs. Deposition Testimony: Deny; no substantial prejudice shown.

Dattola initially stated that she was employed from 2009 to the present and later testified that she began working for the firm in 2007. Plaintiff does not show how he is substantially prejudiced by this two-year difference or that

further discovery would not resolve any questions about any timeline.

Response to SROG No. 5 vs. Supplemental

Response to RFA No. 5:

Deny. Plaintiff does not demonstrate how this two-year difference resulted in substantial prejudice.

Response to RFA No. 6 vs. Supplemental

Response to RFA No. 6 vs. Deposition Testimony: No showing of substantial prejudice.

Response to RFP No. 23 vs. Special

Interrogatory No. 15: Deny. Plaintiff claims there is an inconsistency between Dattola's claim that she did not know of any contingency bonuses attributable to Plaintiff's accounts, and her interrogatory response identifying specific years in which she knew of contingency bonuses. Defendants argue there is no true contradiction between Dattola was aware of contingency bonuses generally, without knowing whether any were attributable to Plaintiff's accounts.

B.

Denise

Weaver

Response to RFA No. 9 and SROG No. 5 vs.

Deposition Testimony: Deny;

no true contradiction. Having access to a document or being aware of it is not the same as reviewing it.

Response to RFA No. 8 vs. Supp.

Response to RFA No. 8:

Deny. No true contradiction.

Response to RFA Nos. 4 and 10: Deny evidentiary or monetary sanctions, but supplemental responses to RFA Nos. 4 and 10 are stricken sua sponte because an admission cannot be amended or withdrawn without leave of court.

Response to SROG No. 9 and Supplemental

Response to SROG No. 9: No

substantial prejudice.

RFA No. 6 vs. Response to RFA No. 5: Deny;

no true contradiction; whether accountings reflecting contingency bonuses are provided to Plaintiff is different from whether Defendant prepared or reviewed statements omitting bonuses.

C.

Matthew

Weaver

SROG No. 3 vs. Supplemental Response to

SROG No. 3 vs. Deposition Testimony: Deny; no substantial prejudice or actual contradiction between responses.

SROG No. 1 vs. Supplemental Response to

SROG No. 1: Deny; no true contradiction.

RFA No. 1 and Supplemental Response to

RFA No. 1: Motion for sanctions is denied, but supplemental response to RFA No. 1 is stricken.

RFA No. 15 vs. Response to SROG Nos.

17-18 and Supplemental Response to SROG No. 18: Deny, no substantial prejudice that cannot be cured by additional discovery.

SROG No. 10 v. Supplemental Response to

SROG No. 10 vs. Deposition Testimony: Deny. No contradiction.

SROG No. 16

vs. Supplemental Response to SROG No. 16: Deny. No contradiction. Initial response refers to general communication relating to contingency bonuses while supplemental responses denies communicating about any contingency bonuses due to Plaintiff.

D. Ralph Weaver

Response to SROG No. 1 v. Supplemental

Response to RFA No. 1 vs. Deposition Testimony: Deny, no substantial prejudice and additional discovery can remedy any confusion.

Response to SROG No. 3 vs. Deposition

Testimony: Deny. No contradiction.

Response to RFA No. 10 vs. Supplemental

Response to RFA No. 10:

Deny as to sanctions, but supplemental response is stricken.

E.

Weaver

& Associates, Inc.

RFA Nos. 2, 3, and 10 vs. Supplemental

Response to RFA Nos. 2, 3, and 10: Deny as to sanctions, but supplemental responses to RFA Nos. 2, 3, and 10 are stricken.

Response to RFA No. 4 vs. Supplemental

Response to RFA No. 4:

Deny, no true contradiction.

Response to RFA No. 14 vs. Supplemental

Response to RFA No. 14:

Deny as to sanctions, but supplemental response to RFA No. 14 is stricken.

Response to SROG No. 22 vs.

Supplemental Response to SROG No. 22: Deny; not a contradiction, but an addition to the initial answer.

Response to SROG No. 13 vs.

Supplemental Response to SROG No. 13: Deny; no prejudice that a continuance of discovery or further discovery could not cure.

Response to RFA No. 15 vs. Supplemental Response to RFA

No. 15: Deny; supplementation was not prejudicial.

IV.

CONCLUSION

Plaintiff's motion for an order binding

Defendants to their initial responses to interrogatories is DENIED. Plaintiff's motion for evidentiary sanctions is DENIED. The Court strikes Defendants'

supplemental responses to Plaintiff's RFAs as follows:

Denise Weaver: Supplemental Responses  
to RFA Nos. 4, 10;

Matthew Weaver: Supplemental Response  
to RFA No. 1;

Ralph Weaver: Supplemental Response to  
RFA No. 10;

Weaver & Associates, Inc.:  
Supplemental Responses to RFA Nos. 2, 3, 10, 14.

No sanctions are imposed because some  
of Defendants' supplemental responses were improperly served without leave of  
court, even though most of Plaintiff's arguments in support of this motion were  
unpersuasive. Imposing sanctions on any party in these circumstances would be  
unjust.

Defendants to give notice.

Dated  
this 1st  
day of July 2026

William A.  
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this  
tentative must send an email to the Court at [email protected] indicating  
intention to submit on the tentative as directed by the instructions provided  
on the court website at [www.lacourt.org](http://www.lacourt.org). Please be advised that if you submit  
on the tentative and elect not to appear at the hearing, the opposing party may  
nevertheless appear at the hearing and argue the matter. Unless you receive a  
submission from all other parties in the matter, you should assume that others  
might appear at the hearing to argue. If the Court does not receive emails from  
the parties indicating submission on this tentative ruling and there are no



appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.